

23NWCV02182 23NWCV02182

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-05

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CP%2C08%2F05%2F2026

Source SHA-256: a4e77b5eb6e1ea6a3257886ef0b35e3343c21a8622ae7a3dce301610ce391f17

Case Number: 23NWCV02182 Hearing Date: August 5, 2026 Dept: P

This premises liability action was filed on July 13, 2023. On February 5, 2026, during a Non-Appearance Case Review Re: Bankruptcy, the Court ordered the complaint filed by Plaintiff Helen Marie Stephens (Plaintiff) dismissed without prejudice. Plaintiff has a Motion to Set Aside Default scheduled to be heard on January 7, 2027. Plaintiff now applies ex parte to set aside this dismissal and reinstate the complaint or, in the alternative, to shorten time to hear Plaintiff's Motion to Set Aside. Plaintiff argues she did not cause the dismissal and should not have to suffer a terminating sanction.

Plaintiff's ex parte application to set aside the dismissal is DENIED without prejudice. The Court does not adjudicate the merits of the Motion to Set Aside on an ex parte basis.

Plaintiff's alternative request, to advance the hearing date on the Motion to Set Aside, is GRANTED. Plaintiff's Motion to Set Aside is ADVANCED to today's date and CONTINUED to Thursday, September 17, 2026 at 9:30 AM in Dept. P. Opposition and reply to be filed and served per Code in accordance with the new hearing date. Moving party to give notice